IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH
COURT III

IA-189/2022 &

CAA-99/ND/2021

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

In the matter of:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Rule 3 & 5 of Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

AND

In the matter of Scheme of Amalgamation

OF

FLORA DISTRIBUTORS PRIVATE LIMITED

(Transferor Company No.1)

AND

GEET INFRACON PRIVATE LIMITED

(Transferor Company No.2)

AND

RED CHILLI INFOTECH PRIVATE LIMITED

(Transferor Company No.3)

AND

TECHNOFAB CONSTRUCTIONS PRIVATE LIMITED

(Transferor Company No.4)

AND

VALUE DISTRIBUTORS PRIVATE LIMITED

(Transferor Company No.5)

MBM BEARINGS (RAJSTHAN) PRIVATE LIMITED

(Transferor Company No.6)

WITH

PRECIOUS TRADEWAYS PRIVATE LIMITED

(Transferee Company)

Order delivered on 22.08.2022

CORAM

SHRI. BACHU VENKAT BALARAM DAS
HON'BLE MEMBER (JUDICIAL)

SHRI BINOD KUMAR SINHA
HON'BLE MEMBER (TECHNICAL)

For the Petitioner Companies: CS Rahul Jain

ORDER

1. This is second motion petition filed by the petitioner companies herein, FLORA DISTRIBUTORS PRIVATE LIMITED(**"Transferor Company No.1"**), GEET INFRACON PRIVATE LIMITED(**"Transferor CompanyNo.2"**), RED CHILLI INFOTECH PRIVATE LIMITED(**"Transferor Company No.3"**), TECHNOFAB CONSTRUCTIONS PRIVATE LIMITED(**"Transferor Company No.4"**), VALUE DISTRIBUTORS PRIVATE LIMITED(**"Transferor Company No.5"**), MBM BEARINGS (RAJSTHAN) PRIVATE LIMITED(**"Transferor Company No.6"**)with PRECIOUS TRADEWAYS PRIVATE LIMITED(**"Transferee Company**) jointly under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with 3 &5 Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Amalgamation (hereinafter referred to as the "SCHEME")proposed between the petitioners. The said Scheme is also annexed as Annexure "Annexure-P6" to the application. The petitioners above named have preferred the instant application in effect for the purpose of amalgamation of Transferor Companies with Transferee Company as evident inter alia from the reliefs sought for in the Application.

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2. It is seen from the record that this tribunal vide order dated 05.08.2021 allowed the first motion and dispensed with the requirements of convening of meetings of the shareholders and Creditors of the Transferor and Transferee Companies.

3. It is submitted that the Petitioner Companies has already served the statutory authorities in compliance of the order dated 05.08.2021 of this tribunal, however, it is pertinent to issue the notice to the statutory authorities for their observation to the present scheme, therefore, this Tribunal is issuing notice to Regional Director (North), Registrar of Companies, NCT of Delhi and Haryana, Office of Official Liquidator, Reserve Bank of India, New Delhi and the Income Tax Department. The Petitioner is directed to serve the concerned authorities and file compliance affidavit. The concerned authorities may file their objection, if any, within 2 weeks from date of receiving the notice.

4. The petitioner has also filed an IA-189/2022 in the main matter seeking order for publication of notice of the present petition in "Business Standard", Delhi edition Hindi newspaper being the principal vernacular language of the district in which the registered office of the company is situated and in "Business Standard", Delhi edition English Newspaper, being the wider circulating newspaper in Delhi region. The

prayer as sought above is allowed and petitioner is directed to file the compliance affidavit. Accordingly, IA-189/2022 is **allowed.**

5. List the main matter i.e., CAA-99/ND/2021 on 14.10.2022

-Sd-

(BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

-Sd-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)